

END USER LICENSE AGREEMENT AND PRIVACY POLICY

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Please read this End User License Agreement ("Agreement" or "EULA") and Privacy Policy carefully before using this application (the "Service" or "SDA"). By accessing or using the Service, you agree to be bound by the terms of this Agreement. If you do not agree to these terms, do not use the Service.

1. RELATIONSHIP TO SPOTIFY & INTELLECTUAL PROPERTY

- **Independent Application:** This Service is an independent software application developed and operated solely by the developer. It utilizes the Spotify Web API but is not affiliated with, endorsed, certified, sponsored, or otherwise approved by Spotify Media S.E., Spotify AB, or any of its affiliates ("Spotify").
- **Ownership of Marks:** "Spotify" is a registered trademark of Spotify AB. All Spotify marks, logos, brand names, track metadata, album artwork, and audio content made available through the Spotify Platform remain the exclusive property of Spotify or its respective licensors. No ownership rights are transferred to you under this Agreement.

2. LICENSE GRANT & SCOPE OF USE

- **Limited License:** Subject to your strict compliance with this Agreement, you are granted a limited, non-exclusive, non-transferable, non-sublicensable, and revocable license to use the Service for your private, personal, and non-commercial use on Approved Devices.
- **Personal & Non-Commercial Use Only:** In strict accordance with Spotify's policies, this Service is intended strictly for personal entertainment. You may not use this Service in connection with any commercial entity, business premises (such as bars, restaurants, retail stores), or for any monetization purposes unless explicitly permitted by Spotify.

3. PROHIBITED CONDUCT & CONTENT PROTECTION

You expressly agree that you will not, under any circumstances, engage in or facilitate any of the following prohibited behaviors:

- **Reverse Engineering:** You shall not modify, edit, alter, create derivative works based on, disassemble, decompile, reverse-engineer, or extract source code from the Service, the Spotify Platform, Spotify Service, or Spotify Content to the full extent allowed by law.

- **Stream Ripping:** You are strictly forbidden from capturing, recording, downloading, ripping, or reproducing permanent copies of any audio or video content provided through the Spotify Service.
- **Artificial Manipulation:** You shall not use any automated scripts, bots, or processes to artificially increase or manipulate track play counts, follow counts, or stream metrics.
- **AI Training:** You are strictly prohibited from using the Spotify Platform, the Service, or any Spotify Content to train any machine learning, large language, or artificial intelligence models, or otherwise ingesting Spotify Content into an AI model.

4. DISCLAIMER OF WARRANTIES

THE SERVICE, THE SPOTIFY PLATFORM, THE SPOTIFY SERVICE, AND ALL SPOTIFY CONTENT ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS. THE DEVELOPER AND SPOTIFY MAKE NO WARRANTIES OR REPRESENTATIONS OF ANY KIND, EXPRESS OR IMPLIED. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE DEVELOPER AND SPOTIFY EXPRESSLY DISCLAIM ALL WARRANTIES, INCLUDING BUT NOT LIMITED TO THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. NEITHER THE DEVELOPER NOR SPOTIFY GUARANTEES THAT THE SERVICE WILL BE UNINTERRUPTED, TIMELY, SECURE, ERROR-FREE, OR ACCURATE.

5. LIMITATION OF LIABILITY & PRODUCT RESPONSIBILITY

- **Developer Responsibility:** The developer is solely responsible for the implementation, maintenance, and user support of this Service. Spotify has no obligation whatsoever to provide technical support, upgrades, or modifications for this application.
- **Disclaimers of Third-Party Liability:** To the maximum extent permitted by applicable law, in no event shall Spotify, its affiliates, officers, directors, employees, licensed partners, or successors be liable to you or any third party for any indirect, incidental, special, punitive, exemplary, or consequential damages. This includes any loss of use, data, business, or profits arising out of your use or inability to use the Service, regardless of the legal theory.

6. THIRD-PARTY BENEFICIARY RIGHT

- **Direct Enforcement:** You expressly acknowledge and agree that Spotify and its corporate affiliates are third-party beneficiaries of this End User License Agreement (EULA) and its privacy provisions. Upon your acceptance of these terms, Spotify is entitled to directly enforce the restrictions, user guidelines, and protections outlined herein directly against you as a third-party beneficiary.

7. PRIVACY POLICY & COOKIE DISCLOSURE

This section outlines how your data is accessed, processed, and secured in strict compliance with the General Data Protection Regulation (GDPR) and Spotify's Data Protection Appendix.

- **Data Controller Status:** The developer acts as an independent data controller regarding the limited Spotify Personal Data processed by the Service.
- **Data Minimization:** The Service only requests and processes the minimum amount of data strictly necessary to operate its core features. This includes your basic Spotify Profile ID, display name, and active session scopes granted via the official Spotify OAuth flow.
- **Strictly Necessary Cookies:** The Service utilizes strictly necessary technical cookies and local storage browser features solely to securely store your temporary authentication tokens (OAuth access and refresh tokens).
- **No Third-Party Tracking:** This application does not use analytical, tracking, or marketing cookies. No third parties are permitted to place cookies on your browser through this application to monitor your browsing activities. You may manage or block cookies via your browser settings, though doing so will break the application's core functionality.
- **Account Disconnection & Data Erasure:** You have absolute control over your data. You may disconnect your Spotify account from this application at any time via the provided user interface or by explicitly revoking access through your official Spotify Apps Account settings page (<https://www.spotify.com/account/apps/>)(<https://www.spotify.com/account/apps/>)). Once a disconnection intent is registered or requested, the application will immediately halt data processing and permanently delete all your associated Spotify Personal Data from its temporary storage within one (1) day.

8. TERMINATION

- **Automatic Termination:** The license granted under this Agreement terminates automatically and without notice if you fail to comply with any of its provisions or violate Spotify's Developer Terms.
- **Data Erasure Upon Termination:** Upon termination or cessation of use, you must immediately stop accessing the Service, and all Spotify Content and personal data stored within the app's ecosystem will be permanently deleted.

9. GOVERNING LAW AND JURISDICTION

- **User Agreement:** This End User License Agreement (EULA) and the legal relationship between the Developer and the End User shall be governed by, and construed in accordance with, the laws of the Republic of Poland. Any disputes arising directly between the End User and the Developer regarding the use of this Service shall be subject to the exclusive jurisdiction of the competent courts in Poland.
- **Spotify Integration Framework:** Notwithstanding the foregoing, the End User acknowledges that all data processing frameworks implemented via the Spotify Web API, intellectual property protections of Spotify Content, and Spotify's third-party beneficiary rights operate under the global regulatory compliance mandates of the

Spotify Developer Agreement, which is governed by the laws of Sweden or the State of California, USA.

Contact Information: For any inquiries regarding this application, terms, or data processing practices, please contact the developer directly through this email address: